

**Risk neutral**

| <b>Fee rule</b>       | <b>Meritorious-P<br/>shortfall</b> | <b>Nonliable-D<br/>burden</b> | <b>Liabile-D<br/>excess burden</b> | <b>Gross outcome<br/>error</b> | <b>Total<br/>expenditures</b> |
|-----------------------|------------------------------------|-------------------------------|------------------------------------|--------------------------------|-------------------------------|
| American              | 0.362                              | 0.178                         | 0.004                              | 0.259                          | 0.415                         |
| Trial Fee-Shifting    | 0.359                              | 0.175                         | 0.005                              | 0.259                          | 0.407                         |
| Complete Fee-Shifting | 0.387                              | 0.192                         | 0.208                              | 0.270                          | 0.624                         |